



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9675

JUL 14 1987

1. Surpass Chemical Co., Inc., Albany, New York, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipment of approximately 100,000 DOT-34 drums of five-gallon capacity, containing sodium hypochlorite solution, classed as corrosive material, which have labels that have inadvertently been marked "NA 1791" instead of the required "UN 1791", and provides no relief from any regulation other than as specifically stated.

2. BASIS. The exemption is based on Surpass Chemical Company, Incorporated's application dated September 24, 1986, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Sodium hypochlorite solution (containing more than 7% available chlorine by weight), classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Hypochlorite solution.

5. REGULATION AFFECTED. 49 CFR Part 107, Appendix B(1) and (2); 172.203(a); 172.301(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packagings prescribed are approximately 100,000 DOT Specification 34 drums of five-gallon capacity, containing sodium hypochlorite solution, classed as corrosive material, which have labels that have inadvertently been marked "NA 1791" instead of the required "UN 1791".

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. The requirements of 49 CFR Part 107, Appendix B(1), (2) and Section 172.203(a) pertaining to marking the exemption number on each package and on the shipping papers are waived.

c. A copy of this exemption must be carried on each motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as possible.

10. EXPIRATION DATE. May 1, 1989, or when the stock of approximately 100,000 labels marked "NA 1791" instead of "UN 1791" has been depleted, whichever occurs sooner.

Issued at Washington, D.C.



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

JUL 14 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U. S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA